

MASTER SERVICE AGREEMENT

THIS MASTER SERVICE AGREEMENT (the “Agreement”) is effective on **October 09, 2024** (the “Effective Date”), and is made and entered into by **Full Scale LLC**, a Kansas limited liability company (“Full Scale”) and **TEST CLIENT PROSP-ACTIVE** ("Client"), each a “Party” and together the “Parties.”

RECITALS

WHEREAS, Full Scale specializes in providing guided development, staff augmentation, graphic design, content marketing and business consulting services; and Client desires to engage Full Scale to provide these services on the terms and conditions set forth in this Agreement.

AGREEMENT

NOW, THEREFORE, in consideration of the premises hereof and the mutual covenants, agreements, obligations and consideration hereafter provided, it is agreed by the Parties hereto as follows:

1. Definitions

- 1.1 “Client Representative” means one of the Client's employees or agents designated by Client, who is Client's liaison with Full Scale, and who shall have the power to act as Client's project manager to make ongoing decisions under this Agreement which are binding upon Client.
- 1.2 “Confidential Information” means each Party’s confidential or proprietary information, including by way of example and not limitation information related to: market share, unpublished patents, patentable ideas, customer information, pricing models, current and future marketing ideas and plans, costs, supplier lists, data, client data and client lists, research and testing knowledge and results, trademark information, financial information, competitive analysis, product costs, designs, custom calculations, custom displays specifications, methodologies, and know-how, the existence of this Agreement, the nature of the discussions and the relationship between the Parties, and information obtained from other persons under agreements to keep such information confidential, trade secrets and other internal secret and proprietary information. Confidential Information does not include information that is publicly available or that becomes known to the general public other than as a result of a breach by an obligation of the Recipient Party of the Confidential Information.
- 1.3 “Deliverable” means any Service or Product the Parties agree will be delivered under a Service Contract.
- 1.4 “Full Scale Personnel” refers to the employees, subcontractors and independent contractors of Full Scale hired by Full Scale to perform the Services described in a Service Contract.
- 1.5 “Full Scale Property” mean the Services, Full Scale’s Intellectual Property Rights, Full Scale’s Confidential Information and improvements to the Full Scale Property.
- 1.6 “Intellectual Property Right” means any patent, design right, copyright, trademark, service mark (any other application or registration respecting the foregoing), database right, trade secret, know-how, processes, software, code, specifications and/or other present or future intellectual property right of any type, wherever in the world possible.
- 1.7 “Products” means any product developed by Full Scale for Client such as graphic design work. Each Product will be defined in a Service Contract.
- 1.8 “Service Contract” means the detailed description of a Product or Service, including but not limited to, Deliverables, milestones, timeline or schedule and responsibilities of the Parties. A Service Contract may be changed only by a new Service Contracts added upon the mutual written agreement of the Parties. New Service Contracts will be attached and consecutively numbered as Exhibit A-1, Exhibit A-2, etc.
- 1.9 “Services” means guided development services, staff augmentation, graphic design, content marketing development, or any services specified in each Service Contract; provided that Full Scale only agrees to provide any of the services in a Service Contract.
- 1.10 “Term” means the Initial Term and all renewal terms of this Agreement.
- 1.11 “Guided Development” refers to the concept that the Client/Client Representative will be responsible for managing Full Scale Personnel assigned to the Client in the Service Contract to ensure satisfaction of Services. It is mutually agreed that only the Client will be able to provide the guidance necessary to complete these Services to a satisfactory level. Full Scale will be responsible for managing Full Scale personnel from all other aspects that are not directly related to performing the contracted Services.

2. Description of Services, Agreement.

- 2.1 Services. Each Service Contract entered into by the parties will describe the Services to be provided and be made a part of this Agreement whether or not a Service Contract expressly provides the terms of this Agreement are incorporated in a Service Contract; provided, however, the Service Contract terms take precedence over any conflicting provision in this Agreement to the extent necessary to resolve any conflict. Each Service Contract will be considered a separate agreement which incorporates the terms and conditions of this Agreement. Full Scale will provide the Services in a professional manner.
- 2.2 Ownership; Licenses. Each Party owns such Party’s Intellectual Property Rights. Except as set forth in this Agreement or a Service Contract, (i) neither this Agreement nor any disclosure made hereunder grants any license or usage rights to either Party under any Intellectual Property Rights of the other Party, and (ii) any license of Intellectual Property Rights shall be addressed in the applicable Service Contract. The Parties agree the Deliverables shall be considered a “work made for hire” as contemplated by 17 U.S.C. 101 et seq. Client shall be considered the author of the Deliverables, and the Deliverables are the Client’s sole property.

3. Client Responsibility.

- 3.1 Data and Information. Client shall make available in a timely manner at no charge to Full Scale all data, programs, files, documentation, or other information and resources required by Full Scale for the performance of the Services. Client will be responsible for, and assumes the risk of any problems resulting from, the content, accuracy, completeness and consistency of all such data, materials, and information supplied by Client.
- 3.2 Personnel. Client or Client's Personnel will be reasonably available to assist with any Client needs as required by Full Scale to respond to Full Scale Personnel’s questions, and to perform the Services.
- 3.3 Equipment. If Full Scale Personnel are to work on Client's premises, Client will provide at no charge to Full Scale for Full Scale’s Personnel to use a workspace and access to the appropriate computing resources, including phone, fax, and other mutually agreed office equipment and materials needed for the work such Full Scale Personnel performing under this Agreement.
- 3.4 Client Representative. Client will appoint and designate the Client Representative, who shall provide professional and prompt liaison with Full Scale and have the necessary expertise and authority to commit Client. Primary guidance and direction for Full Scale with respect to performance of the Services will be the responsibility of the Client Representative, who will be available to attend progress meetings scheduled during normal business hours at regular intervals, to maintain clear and open channels of communication, and to minimize problems and facilitate prompt and efficient performance of the Services. The Client may change its Client Representative upon two (2) days notice to Full Scale.

4. Fees; Invoices; Payments; Taxes.

- 4.1 Fees. The fees for Full Scale’s Services will be on the terms and at the rates specified in the applicable Service Contract.
- 4.2 Invoices; Payments. Unless otherwise specified in the applicable Service Contract, Full Scale will invoice Client monthly for the Services, prepaid thirty (30) days in advance on or within the first ten (10) days of each month (the “Invoice Period”). For example, Client will be invoiced in March for Services to be performed in April. Client’s first monthly invoice is due on the Effective Date. On the Effective Date, Client shall provide Full Scale with Client’s ACH authorization, a form of which is attached on Exhibit B. On or prior to the 10th of each month during the Term, Full Scale will process the Client’s invoice via ACH. If any payment is not honored by Client’s bank, Client shall pay to Full Scale an insufficient funds fee of \$35.00 in addition to any amounts owed by Client.
- 4.3 Taxes, Duties and Shipping Costs. Except as set forth in a Service Contract, all prices specified in the Service Contract are exclusive of sales, use,

excise and other applicable taxes, duties and similar levies on the Services, all of which shall be payable by Client in addition to the prices as specified in the applicable Service Contract, unless Client provides Full Scale with a valid exemption certificate therefrom. However, some staff augmentation Services may be inclusive of United States withholding taxes on the Full Scale Personnel.

5. Term and Termination.

5.1 Term. This Agreement shall be effective as of the Effective Date and shall remain in full force and effect for three (3) years, unless terminated as specified below (the “Initial Term”). After the Initial Term, the Agreement shall continue for each year thereafter (with the Initial Term, collectively, the “Term”). Each Service Contract shall provide a term for such Service Contract, and if no term is provided, the Service Contract will automatically terminate upon the cessation of the Services set forth in the Service Contract.

5.2 Termination for Convenience. Either Party may terminate this Agreement for convenience by at least thirty (30) days written notice to the other Party; however, if Client is the terminating Party, such termination shall not become effective until the last day of the month of the following Invoice Period. For example, if the Client notifies Full Scale of termination of the Agreement on August 15th, such termination will be effective September 30th. If terminating for convenience, Client shall not be entitled to a refund for amounts paid to Full Scale under this Agreement or a Service Contract.

5.3 Termination for Cause. Either Party may terminate this Agreement for a material breach by the other Party which is not cured within the shorter of: (i) thirty (30) days after the receipt by the breaching Party of written notice and reasonable description of the breach; or (ii) when it becomes evident that cure within such thirty (30) day period is impossible. Full Scale may terminate this Agreement if Client fails to pay any amount due under this Agreement and if Client has not paid within ten (10) days following the written notice. This section shall survive termination of this Agreement.

5.4 Effect of Termination. Upon termination of this Agreement or any Service Contract, for any or no reason, the following shall apply:

- 5.4.1 Client shall immediately cease using the Services and/or Products.
- 5.4.2 Client shall pay all amounts due to Full Scale under any Service Contract, which payments are due and owing on the termination date, if not already paid by Client.
- 5.4.3 Client shall return all Full Scale Property or provide an officer’s certificate that the Full Scale Property has been destroyed.

5.5 Survivability. Any sections of this Agreement and any Service Contract which expressly survive termination of this Agreement, or which, by their nature, should reasonably survive termination of this Agreement, shall survive, including but not limited to the restrictive covenants, the payment terms and all terms related to the protection of Full Scale Property.

6. Insurance. Full Scale shall maintain insurance policies in the minimum amounts stated below.

Type of Insurance	Limits of Liability
Comprehensive General Liability (including Contractual Liability, Bodily Injury, Property Damage, and Personal Injury)	\$1,000,000 combined single limit
Workers' Compensation Employee Liability	As required by the laws of the state in which the work is being performed

7. Subcontractors. The Client acknowledges that Full Scale utilizes the services of subcontractors in fulfilling certain portions of the Services.

8. Relationship of Parties. The Parties intend that an independent contractor relationship be created by this Agreement. The conduct and control of the work will lie solely with Full Scale. Subject to the confidentiality provisions and other terms contained in this Agreement, Full Scale shall be free to contract for similar Services to be performed for other clients while under contract with Client. Full Scale is not to be considered an agent or employee of Client for any purpose nor is it entitled to any of the benefits Client provides for its employees.

9. Confidentiality.

9.1 Each Party (the “Recipient Party”) shall refrain from disclosing such other Party’s (the “Disclosing Party”) Confidential Information to any contractor or other third party or any employee or advisor without a need to have access to the Confidential Information without prior, written approval from the Disclosing Party and shall protect such Confidential Information from inadvertent disclosure to a third party using the same care and diligence that the Recipient Party uses to protect its own proprietary and confidential information, but in no case less than reasonable care. The Recipient Party shall ensure that each of its employees, officers, directors, or agents who has access to Confidential Information disclosed under this Agreement is informed of its proprietary and confidential nature and is required to abide by the terms of this Agreement. The Recipient Party of Confidential Information disclosed under this Agreement shall promptly notify the Disclosing Party of any disclosure of such Confidential Information in violation of this Agreement or of any subpoena or other legal process requiring production or disclosure of said Confidential Information.

9.2 Disclosure to Third Persons. Each party shall remain liable for all unauthorized or improper disclosures or use of any Confidential Information by its employees, officers, consultants, agents, accountants and/or attorneys and shall enforce the confidentiality obligations of this Agreement against them at its own cost and expense. If at any time either party receives notice that it may be required or ordered by any judicial or governmental court, entity or agency to disclose any Confidential Information of the other party, such party may do so to the extent that it is compelled to make such disclosure upon advice of counsel provided that: (i) it takes all necessary steps to give the other party as much prior notice as possible in order for the other party to contest such requirement or order; and (ii) it cooperates with and assists the other party and its legal advisers in any efforts or legal action which the other party may institute to protect the confidentiality of its Confidential Information.

9.3 Non-Use of Confidential Information. Each Party agrees that it will make no use of the Confidential Information of the other Party: (i) for purposes other than this Agreement or applicable Service Contract; or (ii) for any other commercial or non-commercial purpose not authorized in writing in advance by all Parties.

10. Indemnity. Each Party (the “Indemnifying Party”) agrees to indemnify, defend and hold the other Party (the “Indemnified Party”) harmless against any third-party claim (including, but not limited to, claims of governmental agencies) arising from the alleged acts or omissions of the Indemnifying Party or its employees, agents or subcontractors in connection with Services to be performed pursuant to this Agreement or Service Contract. In the case of a third-party claim, the Indemnified agrees to notify the Indemnifying Party promptly in writing of any such claim or suit and gives the Indemnifying Party control of the defense and/or settlement of any such action. The Indemnifying Party agrees that it shall not enter into any settlement agreement requiring any action or admission by the Indemnified Party without the Indemnified Party’s prior written consent, which consent shall not be unreasonably withheld. The Indemnified Party shall have the right to hire its own counsel solely to monitoring any such action, at the Indemnified Party’s own expense. The Indemnifying Party shall not be liable for any costs or expenses incurred by the Indemnified Party without the Indemnifying Party’s prior written authorization. This section shall survive termination of this Agreement.

11. Warranty; Limitation of Liability.

- 11.1 Warranty and Liability Limitations. EXCEPT AS PROVIDED IN THIS SECTION, ALL SERVICES ARE DELIVERED WITHOUT WARRANTY OF ANY KIND (EXPRESS IMPLIED, OR STATUTORY) TO CLIENT OR ANY THIRD PARTY, INCLUDING, BUT NOT LIMITED TO, ANY EXPRESS OR IMPLIED WARRANTIES OF: 1) MERCHANTABILITY; 2) FITNESS FOR A PARTICULAR PURPOSE; 3) EFFORT TO ACHIEVE PURPOSE; 4) QUALITY; OR 5) ACCURACY.
- 11.2 Limitation of Liability. EXCEPT AS SET FORTH IN THIS SECTION 11.2, IN NO EVENT SHALL FULL SCALE BE LIABLE TO CLIENT FOR ANY REASON FOR ANY AMOUNT IN EXCESS OF THE FEES ACTUALLY PAID BY CLIENT TO FULL SCALE FOR SERVICES AND/OR PRODUCTS PROVIDED HEREUNDER IN THE LAST (12) MONTHS. CLIENT AGREES THAT ANY EFFORTS BY FULL SCALE TO MODIFY ITS SERVICES OR PRODUCTS SHALL NOT BE DEEMED A WAIVER OF THESE LIMITATIONS, AND THAT ANY FULL SCALE WARRANTIES SHALL NOT BE DEEMED TO HAVE FAILED OF THEIR ESSENTIAL PURPOSE. NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, SPECIAL, INCIDENTAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES INCLUDING, WITHOUT LIMITATION, LOST PROFITS OR OTHER ECONOMIC LOSS ARISING UNDER THIS AGREEMENT. THIS LIMITATION OF LIABILITY WILL APPLY REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT OR TORT, INCLUDING NEGLIGENCE AND INDEPENDENT OF ANY FAILURE OF ESSENTIAL PURPOSE OF THE REMEDIES

PROVIDED HEREUNDER, AND SHALL APPLY WHETHER A PARTY HAS BEEN APPRISED OF THE POSSIBILITY OF SUCH DAMAGES. NOTWITHSTANDING THE FOREGOING, THE PARTIES ACKNOWLEDGE AND AGREE THAT THE PROVISIONS OF THIS SECTION SHALL NOT APPLY TO: (i) ANY BREACH BY A PARTY OF CONFIDENTIALITY, AND/OR NON-DISCLOSURE PROVISIONS HEREUNDER, (ii) INTENTIONAL MISCONDUCT, (iii) GROSS NEGLIGENCE; AND (iv) ANY SECTION IN THIS AGREEMENT THAT EXPRESSLY STATES THAT LIMITATIONS ON LIABILITY DO NOT APPLY.

11.3 Allocation of Risk. Client and Full Scale agree that the foregoing limitation of liability set forth in Section 11 fairly allocate the risks in the Agreement between the parties. This allocation is an essential element of the basis of the bargain between the parties; Full Scale would not have entered this Agreement without these limitations, and the limitations will apply notwithstanding any failure of the essential purpose of this Agreement or any limited remedy hereunder.

11.4 Survival. This section shall survive termination of this Agreement.

12. Restrictive Covenants.

12.1 No Exclusivity. Full Scale reserves the right to develop, use and distribute products and services that perform the same or substantially the same functions to the Products and Services, developed or performed under this Agreement or any Service Contract or to work for any clients which may have products or services competitive to Client’s products and services.

12.2 Non-Solicitation. During the Term and for two years after the termination of the Agreement, Client shall not hire any Full Scale Personnel without Full Scale’s prior written consent. During the Term and for two years after the termination of the Agreement, Full Scale shall not solicit Client’s customers that Full Scale worked directly with during the course of this Agreement unless Full Scale receives the Client’s prior written consent.

12.3 Non-Circumvention. During the Term and for two years after the termination of the Agreement, Client shall not, directly or indirectly, interfere with, or attempt to circumvent, the relationship of Full Scale with any corporation, partnership, or individual revealed or introduced by Full Scale to the Client in connection with any ongoing or future project related to the Services, without the prior written consent of Full Scale. This includes, but is not limited to, producers, sellers, buyers, distributors, financial institutions, technology owners, consulting firms, developers or manufacturers.

12.4 Liquidated Damages. If Client breaches either Section 12.2 or 12.3, the Parties agree that actual damages will be difficult to assess and consequently, in the event of such a breach the Parties agree the Client will pay Full Scale, as liquidated damages, and not a penalty, the greater of (i) the most recent twelve (12) months of the fees paid by Client or (ii) \$50,000.

13. Dispute Resolution.

13.1 Informal. Before initiating legal action against the other relating to a dispute of this Agreement, the Parties agree to work in good faith to resolve disputes and claims arising out of this Agreement. If the dispute is not resolved within thirty (30) days of the commencement of informal efforts under this section, either Party may pursue formal dispute resolution. This section will not apply if: (i) expiration of the applicable time for bringing an action is imminent; or (ii) injunctive or other equitable relief is necessary to protect a Party’s proprietary rights.

13.2 Preliminary Injunctive Relief. A Party may seek preliminary or temporary injunctive relief from a court if, in the Party’s sole judgment, such action is necessary to avoid irreparable harm or to preserve the status quo. If a Party seeks judicial injunctive relief, the Parties shall continue to participate in good faith in dispute resolution procedures described above. Venue for any judicial proceeding for preliminary or temporary injunctive relief shall be in the US District Court of Kansas in Kansas City, Kansas.

13.3 Remedies not Exclusive. Unless this Agreement expressly states that a remedy is exclusive, no remedy made available under this Agreement is intended to be exclusive.

14. Compliance with Law. In performing Full Scale’s obligations under this Agreement, Full Scale, its personnel and subcontractors, if any, shall comply with all applicable city, state and federal laws, ordinances, rules and regulations.

15. Miscellaneous Provisions.

15.1 Amendments. Any amendments to this Agreement must be in writing and signed by both Parties.

15.2 Notices. All notices and other communications under this Agreement shall be in writing and sent by hand-delivery, reputable commercial courier (e.g., Federal Express, UPS or DHL) or electronic mail (with a confirmation copy sent by commercial carrier or certified U.S. mail) addressed to the following described addresses of the Parties hereto, or to such other address as a Party may request in writing:

If to Full Scale:	Full Scale LLC Attn: Matt Watson 730 Minnesota Avenue Kansas City, KS 66101 913.533.4510 watson@fullscale.io
With a copy to:	Seck & Associates LLC Attn: Sheila L. Seck 7285 W. 132nd Street, Suite 240 Overland Park, KS 66213 913.815.8485 sseck@seckassociates.com
If to Client:	TEST CLIENT PROSP-ACTIVE ATTN: Test Pros-act 9191 Carling Avenue ABC Port Richey, Florida 1234 United States 112233445566 userann101+testprosact10oct@gmail.com

Notice pursuant to this Agreement shall be deemed given upon receipt or attempted delivery (if receipt is refused).

15.3 No Waiver. No delay or omission by either Party in exercising any right or remedy hereunder available to that Party shall operate as a waiver of such right or remedy or any other right or remedy. A waiver on one occasion shall not be construed as a bar to, or waiver of, any right or remedy on any future

occasion.

15.4 Severability. If any provision of this Agreement is held to be invalid or unenforceable, such invalidity or unenforceability shall not affect any other provision hereof, but this Agreement shall be construed as if such invalid or unenforceable provision had never been contained herein.

15.5 Force Majeure. Notwithstanding any other provision of this Agreement, each Party will be excused from the performance of its obligations under this Agreement, except for any payment obligations accruing prior to the event, for any period to the extent that it is prevented from performing, in whole or in part, as a result of delays caused by the other Party or any act of God, natural disaster, war, civil disturbance, court order or other events beyond the reasonable control of a Party, except where such delay was caused by the act or omission of the non-performing Party. Such non-performance will not be a default or a ground for termination as long as reasonable means are taken by the non-performing Party to expeditiously remedy the problem causing such non-performance.

15.6 Governing Law. This Agreement and all rights and duties hereunder, shall be governed by the law of Kansas, regardless of its conflicts of laws provisions.

15.7 Mutual Negotiation. The Parties acknowledge and agree that they have mutually negotiated the terms and conditions of this Agreement and that any provision contained herein with respect to which an issue of interpretation or construction arises shall not be construed to the detriment of the drafter on the basis that such Party or its professional advisor was the drafter, but shall be construed according to the intent of the Parties as evidenced by the entire Agreement.

15.8 Section Heading. Section headings in this Agreement are for reference purposes only and are not part of this Agreement.

15.9 Entire Agreement. This Agreement, any Service Contract, Exhibits and any mutually-executed amendments or attachments thereto shall constitute the entire agreement between the Parties regarding the subject matter hereof, and any prior understanding or representation of any kind regarding the subject matter hereof preceding the date of this Agreement shall not be binding upon either Party except to the extent incorporated into this Agreement.

15.10 Electronic Signatures. This Agreement may be executed in two (2) or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail (including pdf or any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docusign.com) or other transmission method and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes.

THE PARTIES EVIDENCE THEIR AGREEMENT WITH THESE TERMS AND CONDITIONS BY SIGNING BELOW.

FULL SCALE LLC

TEST CLIENT PROSP-ACTIVE

a Kansas limited liability company



October 09, 2024 11:30 PM CDT

October 09, 2024 11:30 PM CDT

Darrell Blackburn, Chief Operating Officer

Test Pros-act, Test - COO - PREP